

The New Year Gold Finale

One customer wins 100 g of certified 24K gold — announced LIVE on 31 December 2026

A compliance-engineered festive acquisition engine for India's first 200-manufacturer, 400,000-design jewellery platform — a **Rs 1.5 crore** proposal with a 12-page legal / CA / consumer-court playbook in Part II.

PART I · THE PITCH · PART II · THE COMPLIANCE & ADVISORY PLAYBOOK (12 PAGES)

Rs

INVESTMENT ASK

Rs 1.5 Cr

cash + working capital

MARKETING

Rs 9,00,000

silver-profit bonus funds it

GIVEAWAY

100 g 24K gold

≈ Rs 15L at Rs 15,000/g

ENTRY RULE

3 g gold any karat

OR 100 g silver · or free route

September 2026 · Investor discussion · rates used: 24K gold Rs 15,000/g (deck assumes 22K ≈ Rs 13,750/g) · silver Rs 240/g · gross margins: gold 4% · silver 8%. Not investment, legal or tax advice.

The opportunity window

Gold (24K) rate used

Rs 15,000/g

≈ Rs 1.5 L per 10 g; festive upside historically +5-10% by December

Silver rate used

Rs 240/g

999 purity; volatility is the anchor of the 100 g silver qualifying route

Peak demand

6-10 Nov

Dhanteras · Diwali · Bhai Dooj — then wedding, Christmas, New Year

Online jewellery

Trust gap

hallmark, purity & return anxiety — transparency wins

The structural gap we attack

India's festive gold market sells through fragmented local jewellers and generic marketplaces. Nobody combines aggregated maker designs (200+ manufacturers, 400,000+ SKUs), an AI design concierge, verifiable BIS hallmark / HUID — and a compliance-safe national dream-prize funnel — at launch.

Why the prize is the point

A Rs 15 lakh headline is media, not only a cost. At Rs 9L of paid spend the prize multiplies attention ~2-3x, and every rupee doubles as brand PR, live content and a nationwide retargeting asset — legally structured: any-purchase entry (min 3 g gold any karat or 100 g silver), free no-purchase route, scored skill quiz, audited draw.

Investor read: the promotion pulls demand into a store that already holds the catalogue, the trust assets and the compliance engineering — the campaign converts that into sales, not just entries.

Shivaa.in — the machine behind the campaign

Live CMS & storefront

Built

PHP 8 SPA, catalogue & checkout; HUID workflow (F1);
Why-Trust-Shivaa (F2).

Registered entity

Pvt Ltd

Ernate Shine Jewellery Pvt. Ltd. · CIN
U32111RJ2025PTC099173 · UDYAM · GSTIN live pre-sale.

Supply pipeline

200 makers

Mumbai network; templated hallmark / HUID warranty, IP
indemnity, dispatch SLAs.

Design catalogue

400,000+

bridal, daily-wear gold, festive silver — phased, fulfil-able at
launch.

AI design concierge

Gemini bot

quiz + chat turns 400k designs into a shortlist — disclosed AI,
DPDP-ready.

Compliance kit

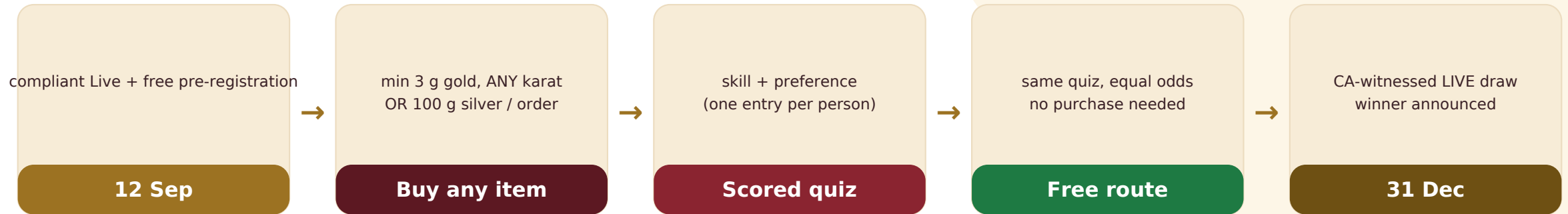
Ready

T&C;, free-entry route, grievance officer, audited-draw
protocol, CCPA / ASCI copy rules.

Why this matters to an investor: the prize only pays if traffic converts. Shivaa already has the catalogue, the chatbot, the trust assets and the compliance engineering — the campaign converts that into demand.

Campaign engine — how an entry is created

The customer chooses the item: any gold piece ≥ 3 g in ANY karat (18K / 22K / 24K — this deck works on 22K), or 100 g silver. One scored skill quiz creates the entry; a no-purchase free route with the same quiz keeps the scheme a lawful contest, not a lottery.



Why this structure is defensible

- Free no-purchase entry removes “consideration” — no private lottery.
- Scored skill quiz → a contest of skill, not pure chance.
- “Win a chance” copy — never “100% free” (CCPA / ASCI).
- Winner's statutory TDS ~31.2% disclosed upfront.
- Written lawyer + CA opinions before entries open (gates G1-G2).

Key legal anchors

- Lotteries (Regulation) Act 1998 · IPC §294A · Prize Competitions Act 1955
- CPA 2019 §2(47) unfair trade practices · CCPA 2022 ad guidelines
- TN / WB excluded (“void where prohibited”); Maharashtra rules reviewed
- Prize: 100 g 24K certified — current market value, never a fixed promise
- Grievance officer — 48-hr ack / 30-day redress (E-Commerce Rules)

Profits — gold 4% · silver 8% (only these two lines)

Line	Rate / g	Making	Retail / g	Min order	Billing ex-GST	Gross profit
Gold — 22K (assumed)	Rs 13,750	10%	Rs 15,125	3 g	Rs 45,375	4% → Rs 1,815
Gold — 24K (reference)	Rs 15,000	10%	Rs 16,500	3 g	Rs 49,500	4% → Rs 1,980
Silver — 999 (assumed)	Rs 240	15%	Rs 276	100 g	Rs 27,600	8% → Rs 2,208

Rates fixed for this deck by the owner: 24K gold = Rs 15,000/g → 22K = Rs 15,000 × 22/24 = Rs 13,750/g; silver = Rs 240/g. Gross profit is the owner's confirmed margin on billing (ex-GST; GST extra ≈ 3%). The 22K line is the working assumption for every breakeven and scale number in this deck; the 24K line ≈ Rs 50,000 billing for a 3 g order.

Gross profit per qualifying order (the only two products that fund the campaign)



Where the money actually comes from: making-charge spread on 4% (gold) and 8% (silver) margins — not from speculating on the metal. Silver's fatter 8% is deliberately treated as the marketing bonus (next page).

Gold pays the bill; silver is the marketing bonus

Fixed campaign cash burn **Rs 27L** = Rs 9.0L marketing + Rs 15.8L prize & logistics + Rs 2.2L campaign ops. Per your brief, the minimum customer count is computed **only on gold profit** (Rs 1,815 per 3 g 22K order); **silver profit is assumed as the bonus that funds the marketing campaign** (Rs 2,208 per 100 g order).

CORE BURN TO RECOVER (GOLD)

Rs 18.0L

prize 15.8 + ops 2.2 — marketing excluded

MINIMUM GOLD CUSTOMERS

≈ 1,000

Rs 18.0L ÷ Rs 1,815 ≈ 992

FULL BURN IF NO SILVER

≈ 1,500

Rs 27.0L ÷ Rs 1,815 ≈ 1,488

SILVER BONUS → MARKETING

≈ 408 orders

Rs 9.0L ÷ Rs 2,208 ≈ 408

Requirement (gold-only basis)	Burn covered	Gold orders needed	GMV at 3 g	Daily pace ≈ 100 days
Marketing alone (if silver bonus absent)	Rs 9.0L	496	Rs 2.25 Cr	5 / day
Core: prize + ops — the hard floor	Rs 18.0L	≈ 1,000	Rs 4.5 Cr	10 / day
Full Rs 27L burn (zero silver, worst case)	Rs 27.0L	≈ 1,500	Rs 6.8 Cr	15 / day

Headline for the investor: the campaign's hard floor is ≈ 1,000 qualifying gold customers (3 g, any karat) at ≈ 10 orders a day — with silver upside funding the marketing itself.

What if 10,000 customers buy the 3 g gold piece?

PER CUSTOMER BILLED

Rs 45,375

3 g × 22K @ 15,125/g — ≈ Rs 50,000 at 24K

PER CUSTOMER PROFIT

Rs 1,815

4% gold gross margin

10,000 × 3 g → GMV

Rs 45.4 Cr

10,000 × Rs 45,375

10,000 × 3 g → PROFIT

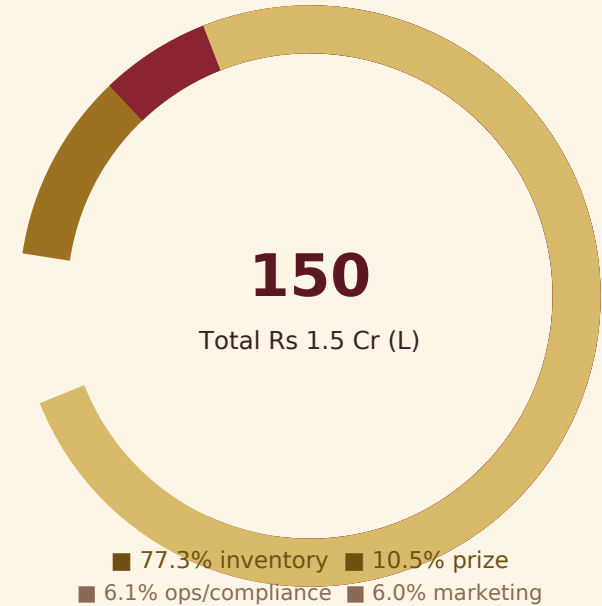
Rs 1.82 Cr

10,000 × Rs 1,815

Gold buyers (× 3 g)	GMV	Gross profit (4%)	Metal to source	Surplus over Rs 27L burn
500	Rs 2.27 Cr	Rs 9.1L	1.5 kg — Rs 2.1 Cr	—Rs 17.9L
1,000	Rs 4.54 Cr	Rs 18.2L	3.0 kg — Rs 4.1 Cr	≈ core break-even
3,000	Rs 13.6 Cr	Rs 54.5L	9.0 kg — Rs 12.4 Cr	+Rs 27.5L
5,000	Rs 22.7 Cr	Rs 90.8L	15 kg — Rs 20.6 Cr	+Rs 63.8L
10,000	Rs 45.4 Cr	Rs 1.82 Cr	30 kg — Rs 41.3 Cr	+Rs 1.55 Cr

The CA's honest footnote: 10,000 buyers means sourcing ≈ 30 kg of gold ≈ Rs 41 Cr (22K basis; ≈ Rs 45 Cr at 24K) — cycle-financed, never funded upfront from the Rs 1.5 Cr. At ≈ 3× festive inventory turns the peak stock ≈ Rs 12-15 Cr rides vendor credit (15/30/45-day), customer prepayment, consignment and bullion / bank limits. Growth is staged 1,000 → 3,000 → 5,000 → 10,000 buyers; the flywheel funds itself beyond the first ≈ 1,000. Silver bonus (8%, Rs 2,208/order) adds a parallel pot.

Use of funds — every rupee accounted



Why 77% sits in inventory: it is the engine and the safety net — stock makes the qualifying sales and remains an owned, saleable asset; the campaign cannot “burn” it. Peak stock ≈ Rs 1.0–1.2 Cr supports ≈ Rs 4–5 Cr GMV at ≈ 3× festive turns.

Cash cycle & inventory engine

1 • Customer pays

Upfront

digital payment incl. GST — full value in immediately

2 • Vendor paid later

15/30/45 days

net terms with 200 makers; float funds the next stock buy

3 • Dispatch ≤ 7 days

Insured

BIS/HUID-verified, invoice-weighted; 48-hr ack / 30-day CS

4 • Gold hedge

Buy early

prize bought ≤ 30 Sep; stock rides festive appreciation

Revenue streams

- **Gold making-spread** — 4% on every gold sale; the qualifying 3 g order earns Rs 1,815.
- **Silver making-spread** — 8% on every silver sale; 100 g earns Rs 2,208 — the marketing bonus.
- **Vendor markup splits** (written) across the 400,000-design catalogue.
- **Repeat & wedding revenue** from a 25k–100k consented cohort.
- **Consolation funnel** post-draw offers to non-winning entrants.

Added value beyond the brief

- **5% leakage buffer** in every order target (cancellations / refunds).
- **Prize bought early + insured** → gold-price risk on the prize is managed.
- **Prize TDS is pass-through** winner pays ≈ 31.2% — not a campaign cost.
- **CA-written GST / ITC model** for the gifted biscuit, before purchase.
- **Fraud controls** OTP, entry caps, order-weight re-verification.

Marketing — funded by the silver bonus, spent where gold demand peaks



Phase	Window	Rs	Focus
Announcement + pre-entry	12 Sep – early Oct	0.8L	compliant Live launch; waitlist; catalogue teasers; pixel building
Launch + Diwali burst	early Oct – 15 Nov	3.4L	entries open; Dhanteras 6 Nov · Diwali 8 Nov · Bhai Dooj 10–11 Nov
Wedding + Christmas	16 Nov – 15 Dec	1.8L	wedding gifting; entry reminders; optional interim Live
Finale	16 – 31 Dec	2.6L	entries close ≈ 18–20 Dec; countdown; 31 Dec live draw; post-draw
Buffer / experiments	rolling	0.4L	creative & influencer (#ad) testing

Budget logic: every ≈ 408th 100 g silver order (8% → Rs 2,208) funds the whole Rs 9.0L plan — the marketing is the bonus that silver's margin pays for, keeping gold profit clean for the

Funnel targets

1–3M reach

→ 20–60k visits (2–4% CTR) → 15–25% entries → 1–2% buy

Cost discipline

CAC ≤ Rs 12–15k

per qualifying buyer; Rs 100–300 per lead

Creative rules

Trust first

hallmark/HUID, the sealed certified biscuit, maker workshops, audited draw

Timeline to the 31 December draw



#	Date	Milestone	Gate
1	Now - 11 Sep	Lawyer + CA opinions; GST application; board resolution; insurer	G1-G3
2	12 Sep	Compliant announcement Live + free pre-registration (no entries yet)	G7
3	13 - 30 Sep	T&C;, DPDP privacy, officers, vendor pacts; prize purchased ≤ 30 Sep	G4-G5
4	Early Oct	Entries open — free route + qualifying purchase (3 g gold any karat or 100 g silver)	G6
5	Oct - 15 Dec	Phased Rs 9L marketing; festival peaks; weekly compliance check-ins	—
6	16 - 20 Dec	Entries close (≈ 18-20 Dec); ledger freeze + SHA-256; PAN / KYC of finalists	—
7	31 Dec	CA-witnessed live draw — winner announced	—
8	Jan 2027	TDS deposit + Form 16A; insured handover; winner PR; MIS report by 31 Jan	—

Risk & mitigation — the answers already built

Risk	L	I	Mitigation in place
Read as lottery / unfair practice	Med	High	free-entry route + skill quiz + written lawyer opinion before entries open
CCPA “100% free” / misleading-ad action	Low	High	“win a chance” copy; conditions prominent; ASCI / CCPA review of every creative
Gold price up by Dec	Med-High	Med	prize bought $\leq$ 30 Sep; budgeted Rs 15–17L range; inventory rides the rise
Vendor fake / under-carat gold	Med	High	hallmark / HUID warranty + indemnity in agreements; batch QC; seller-of-record QA
Site crash on a viral day	Med	Med	load test + queue / rate-limiter rehearsed before peak spend
Draw perceived as rigged	Low	High	CA witness; SHA-256 freeze; unedited recording kept 8 years; live stream
Winner is a free entrant (bought nothing)	Med	Low	disclosed odds; qualifying purchase + silver bonus carry the funnel; consolation offers drive profit
10,000-buyer scale cannot be funded	Med	High	staged growth: $\approx$ 1,000 gold buyers break even on the core burn; expansion cycle-funded (vendor credit, prepay, consignment, bullion limits)

Fuller legal / tax / product risk analysis with statute references is in research files 01–09 of the pack.

Why other jewellers are NOT running this scheme

- **They can't do it legally.** A purchase-only lucky draw is a lottery; most run these blind. We engineered compliance first.
- **They won't risk margin.** $\approx$ 1,000–1,500 buyers on 4–8% margins = months of profit behind one prize — wrong bet for them.
- **They lack inventory depth.** Serving gold AND silver routes needs deep stock, not a slow Rs 30–60L shelf.
- **Traffic wouldn't convert.** No 400,000-design catalogue + AI concierge means a giveaway wasted on a thin store.
- **No tech stack.** Entry ledger, audited draw, free-entry route, HUID checks, DPDP consent, queues — beyond a shop system.
- **Cash & liquidity.** $\approx$ Rs 1.5 Cr upfront with a 3.5-month hold — most jewellers are inventory-cash-tight here.
- **Brand-optics fear.** “Lucky draw” feels cheap to heritage houses — leaving the high-attention game open.
- **Tax complexity.** $\S$ 128 / $\S$ 393(3) TDS, ITC reversal, PAN / KYC, notary draws — paperwork small firms avoid.
- **They can't fulfil 200 makers.** SLAs, hallmarking, returns, quality under one brand — an ops machine most lack.
- **Even a copycat tomorrow** — we hold first-mover data, supplier contracts, the HUID-verified catalogue and the playbook.

The moat is the compliance-first structure + the inventory engine + the data — not the prize alone. The 22K/24K purity flexibility and the silver-8% marketing bonus are structural edges a copycat cannot copy overnight.

The investment — Rs 1.5 crore

Deployment (recap)

Head	Amount
Marketing (silver-bonus funded)	Rs 9.0L
Prize + logistics	Rs 15.8L
Ops & compliance	Rs 9.2L
Inventory & supply chain	Rs 116.0L
Total	Rs 1.50 Cr

Investor comforts

- $\approx$ 77% sits in owned, liquid inventory — not burned.
- Prize funded and purchased first; insured.
- Legal + CA written opinions gate every public step.
- Minimum requirement $\approx$ 1,000 gold customers (core) — $\sim$ 10/day.
- Monthly MIS; full report by 31 Jan 2027.
- Loan documented under §73 (Companies Act).

Structure options (with CA / lawyer)

- **A · Secured loan** — 18% p.a., 12-month bullet; inventory hypothecation; prize escrow.
- **B · Convertible** — note / CCPS at next-round valuation; cap + discount.
- **C · Equity** — dilution at agreed valuation (to be negotiated).

Silver bonus is pledged to the marketing line, keeping gold's 4% clean for debt service. Downside is cushioned by the inventory asset and the gold price.

Investor math at scale (slide 7): 10,000 gold customers $\approx$ Rs 45 Cr GMV $\approx$ Rs 1.8 Cr gross profit on the gold line alone — before the silver bonus.

PART II · THE COMPLIANCE & ADVISORY PLAYBOOK

Legal · CA / Tax · Consumer Court

12 specialist pages · ten Do's + ten Don'ts each · statute-anchored

LEGAL

pp.16-18 lottery law · prize competitions · state laws · ads & “free” claims

CONSUMER

pp.19-20 CPA 2019 & e-commerce · dispute defence & evidence file

CA / TAX

pp.21-23 income tax & TDS · GST & ITC · PMLA, vendor KYC & financing

PRODUCT & DATA

pp.24-25 BIS hallmark / HUID & metrology · DPDP, AI & cyber

GOVERNANCE

pp.26-27 independence & gates · failure-prevention & penalty register

Consumer & advertising lawyer · CA (jewellery-retail, GST, income tax) · consumer-court specialist · BIS / metrology / AML / DPDP
Research-based guidance for your advisors — not a substitute for their written opinions. Purpose: zero campaign failure.

Making the draw lawful — the firm walls

Prize + chance + consideration = a lottery (Lotteries (Regulation) Act 1998; IPC §294A). A purchase-only, pure-chance Rs 15L draw is a private lottery — an offence. The walls below are mandatory, not optional.

FIRM: no entries · no paid ads · no “winner” talk until gates G1-G2 are green — a breach here is criminal, not just civil.

✓ DO MUST

- ✓ **Free entry first.** Genuine no-purchase route, same quiz, equal odds — removes “consideration”.
- ✓ **Real skill.** Scored, decisive quiz with published criteria and tie-break rules.
- ✓ **Written legal opinion** before entries open (gate G1) — filed, not oral.
- ✓ **Full T&C; pre-launch.** 18+, India, IST dates, odds, draw method, tax, re-draw.
- ✓ **State map.** TN + WB excluded; MH / RJ confirmed; “void where prohibited”.
- ✓ **Honest pricing.** Real market price; nothing paid “to enter the draw”.
- ✓ **Audited draw.** CA/notary witness, SHA-256 freeze, live stream, 8-year recording.
- ✓ **Word it as a contest.** “Festive reward / contest” — never “lottery” or “jackpot”.
- ✓ **Public results.** Same channels, promptly, method and odds shown.
- ✓ **Equal odds throughout.** Disclose every mechanic; never stack odds against free entrants.

✗ DON'T MUST

- ✗ **No purchase-only draw.** Prize + chance + consideration = lottery + IPC §294A exposure.
- ✗ **No cosmetic quiz.** Skill must genuinely decide the winner.
- ✗ **No “100% free”.** Say “win a chance” — CCPA / ASCI territory.
- ✗ **No insiders.** Employees, relatives, vendors, agencies and households excluded.
- ✗ **No hidden carve-outs.** Fine-print-only state exclusions invite action.
- ✗ **No delayed results.** Selective or late publication is itself unfair practice.
- ✗ **No winner fees.** Only statutory TDS may be deducted — nothing else.
- ✗ **No chit / scheme framing.** No “pool”, “deposit” or “guaranteed return” language.
- ✗ **No self-dealt draw.** Independent witness + recording are non-negotiable.
- ✗ **No launch before G1-G2.** Zero entries or ads before the written opinions exist.

State acts, licence thresholds & the skill test

The Prize Competitions Act 1955 and state prize-scheme / gambling acts (TN Prize Schemes Act 1979; Maharashtra) govern skill competitions and “prize to promote sales”. Geography is engineered, not assumed.

FIRM: geography, licences and ad wording are fixed by the lawyer in writing — marketing executes approved copy only.

✓ DO MUST

- ✓ **Pre-map every state.** Act, threshold and licence duty tabulated before geography is fixed.
- ✓ **Licence or exclude.** Obtain the licence in time, or exclude residents by a dated, prominent rule.
- ✓ **Terms inside the ad.** Min order (3 g gold any karat OR 100 g silver), one entry, odds, tax.
- ✓ **Market-value language.** “≈ Rs 15L at announcement; value varies with draw-date gold price”.
- ✓ **ASCI / CCPA pre-clearance.** Every creative and script before publication.
- ✓ **Conditions prominent.** Same language as the headline, mobile-legible.
- ✓ **Honest odds.** “1 winner; expected entries; odds ≈ 1 in N” — no false opportunity.
- ✓ **Judging rules published.** Who judges, criteria, timeline — before entries open.
- ✓ **Archive every ad.** Versioned creatives, posts and Lives kept 8 years.
- ✓ **Re-review every 4-5 weeks.** Creatives, grievance log, free-route prominence, state rules.

✗ DON'T MUST

- ✗ **No bait pricing.** The prize is never funded by inflating prices or making charges.
- ✗ **No buried conditions.** Terms only in a fine-print link = concealment.
- ✗ **No unverifiable claims.** “400,000 designs live” must be true and fulfil-able.
- ✗ **No lottery words.** “Jackpot”, “buy a chance”, “win on purchase” — banned.
- ✗ **No shadow winners.** No pre-selected winners or undisclosed influencer-only pools.
- ✗ **No mid-campaign changes.** Amendments prospective only, never touching vested entries.
- ✗ **No geo-drift.** Ads delivered into TN / WB or unlicensed states = state-law breach.
- ✗ **No guesswork.** Central lawyer clears structure; local lawyer clears each state.
- ✗ **No “no purchase necessary” claim.** Say “free entry available; purchase route optional”.
- ✗ **No unsigned-off creatives.** Ads skipping ASCI/CCPA review void the ad defence.

Ads, “free” claims, influencers & Meta rules

CCPA Guidelines 2022 (misleading ads, endorsements), CPA 2019 §2(28) / §2(47), the ASCI code and Meta promotion rules all police a giveaway. Ad copy is a legal artefact — versioned and approved.

FIRM: every customer-facing word is versioned, pre-approved and archived — cleared copy is the only copy.

✓ DO MUST

- ✓ **Pre-clear everything.** Lawyer-reviewed scripts and designs before any post.
- ✓ **Prohibited-claims register.** Scan every draft against “100% free” / fixed-value bans.
- ✓ **Substantiate claims.** BIS / HUID, 200 makers, 400,000 designs — evidence filed first.
- ✓ **Meta release.** Business account, official-rules release, promoter identity shown.
- ✓ **#ad on influencers.** Label every paid post; disclosure duty in the agreement.
- ✓ **No fake engagement.** No bought followers, bots or astroturf reviews.
- ✓ **Geo-targeting guardrails.** Honour state exclusions inside the ad platforms.
- ✓ **Live disclaimers.** Spoken + on-screen: dates, odds, tax, excluded states.
- ✓ **Consent for pixels.** DPDP notice + consent for retargeting; no pre-checks.
- ✓ **Approval log.** Creative-ID, approver, date, version — diligence on file.

✗ DON'T MUST

- ✗ **No “100% free” headline.** The single most dangerous phrase in this campaign.
- ✗ **No fixed “worth Rs 15L”.** Current market value only — the gold price moves.
- ✗ **No discount anchoring tricks.** Bogus “from Rs X” comparisons are prohibited.
- ✗ **No borrowed logos.** Lookalikes, celebrity imagery and BIS-logo misuse all bite.
- ✗ **No dark patterns.** Fake countdowns, forced consent, hidden blocks — banned.
- ✗ **No personal accounts.** Giveaways run from Business / Creator accounts only.
- ✗ **No undisclosed paid media.** Influencer ties always labelled (#ad).
- ✗ **No share-to-enter only.** Viral mechanics must never be the sole entry route.
- ✗ **No ads before G7.** Copy approval is green before the first paid rupee.
- ✗ **No last-minute creative.** Keep a 5-day approval buffer through peak season.

Consumer Protection Act 2019 & e-commerce rules

CPA 2019 — consumer §2(7), unfair practice §2(47), misleading ads §2(28), product liability §84–87 — and the E-Commerce Rules 2020 make Shivaas the seller of record for every listed maker's goods.

FIRM: platform is the seller of record; consumer duties cannot be delegated to makers; SLA 48h/30d, logged and auditable.

✓ DO MUST

- ✓ **Display legal identity.** Name, CIN, GSTIN, address, grievance officer — everywhere.
- ✓ **Returns / refunds / exchange.** Written, prominent, honoured — with timelines.
- ✓ **48-hr ack / 30-day redress.** A logged, dated queue — not an inbox.
- ✓ **Promise = contract.** Certified 100 g 24K, hallmark, declared purity, invoice weights.
- ✓ **Seller of record.** Answer downstream for maker goods; enforce indemnities upstream.
- ✓ **Price transparency.** Metal, making, GST and total shown separately.
- ✓ **Invoice discipline.** HUID / purity / weight / rate / GSTIN + dispatch-weight check.
- ✓ **No pre-ticked extras.** Insurance, wrap, membership — never auto-added.
- ✓ **Rules with the order.** Official rules + T&C; sent with every confirmation.
- ✓ **Published escalation.** CS → grievance officer → senior owner, with SLAs.

✗ DON'T MUST

- ✗ **No “100% free” material.** Same ban as ads — unfair practice.
- ✗ **No hidden winner costs.** Only statutory TDS may be deducted.
- ✗ **No skewed odds un-disclosed.** Buyer-favoured odds without disclosure deceive free entrants.
- ✗ **No fine-print-only terms.** A collapsed T&C; link does not bind consumers.
- ✗ **No fake / gated reviews.** No fabricated ratings; disclose solicitation.
- ✗ **No maker blame-shifting.** Refunds are Shivaas's duty as seller of record.
- ✗ **No unhallmarked jewellery.** An offence and a defect under the CPA.
- ✗ **No weight mismatches.** Verify dispatch weight against the invoice.
- ✗ **No ignored notices.** Every CCPA / commission notice logged and answered.
- ✗ **No record deletion.** Offer files, consents and complaint logs — 8 years.

Dispute defence — commissions, evidence file & SOP

District Commissions: claims ≤ Rs 50L; State: Rs 50L–2Cr; NCDRC: above Rs 2Cr (CPA §2(11) / §34 / §58). Limitation: two years (§69); appeal: 45 days (§41). The evidence file decides the rare big complaint.

FIRM: evidence built daily · notices answered on time by counsel · ad promise = T&C; promise.

✓ DO MUST

- ✓ **Build the file daily.** Method, ads, T&C;, draw recording, witness cert, results.
- ✓ **Log every complaint.** Dated register: channel, issue, SLA dates, resolution.
- ✓ **Deliver the promise.** Certified 100 g on the stated terms — the strongest defence.
- ✓ **Calendar deadlines.** 48-hr ack, 30-day redress, notices, appeal windows.
- ✓ **Answer notices on time.** Written, documented replies — no ex-parte orders.
- ✓ **Draw-integrity evidence.** CA cert, hash, unedited recording, winner KYC.
- ✓ **Re-draw rule published.** Invalid / unresponsive winner → recorded re-draw in stated days.
- ✓ **Settlement authority.** Pre-approved written limit for genuine disputes.
- ✓ **Counsel on standby.** Consumer lawyer briefed before 12 Sep — not after a notice.
- ✓ **Close the file.** By 31 Jan 2027: complaints, outcomes, penalties, lessons.

✗ DON'T MUST

- ✗ **No evidence tampering.** Deleting or editing draw records loses cases.
- ✗ **No verbal promises.** Only written promises consistent with the T&C;.
- ✗ **No stonewalling.** Ignoring a notice turns a fix into a default order.
- ✗ **No ad-vs-T&C; conflict.** Consumer gets the favourable reading — keep them identical.
- ✗ **No prize substitution.** No cash / lower-purity swap without written consent.
- ✗ **No loose admissions.** Response drafts via counsel — emails can waive defences.
- ✗ **No stalled re-draw.** A failed winner re-draws promptly, publicly.
- ✗ **No forum mistakes.** Answer in the right commission; respect appeal windows.
- ✗ **No oral settlements.** Written settlement with release.
- ✗ **No purge while open.** Keep records beyond 8 years while limitation runs.

Prize, TDS & the winner's PAN — engineered

Income-tax Act 2025: winnings taxed at draw-date FMV under §128 at 30% + surcharge/cess $\approx 31.2\%$ (earlier §115BB); resident TDS under §393(3). Shivaa is the withholding agent — agent errors are Shivaa's exposure.

FIRM: PAN verified → TDS $\approx 31.2\%$ deposited → Form 16A issued → prize released. The sequence is not flexible.

✓ DO MUST

- ✓ **Deduct $\approx 31.2\%$.** 30% + surcharge + 4% cess, on the CA's computation.
- ✓ **Value at draw-date FMV.** Evidenced by refiner invoice + certificate.
- ✓ **Verify PAN on the portal.** Before release; no PAN → higher TDS rate.
- ✓ **Deposit + file on time.** TDS challans and quarterly 24Q returns; track 26AS.
- ✓ **Form 16A to the winner.** Within the statutory window.
- ✓ **Winner files ITR.** TDS is adjustable — refund possible at a lower slab.
- ✓ **Gross-up only if CA-approved.** $\approx \text{Rs } 15.0\text{L} \div 0.688 \approx \text{Rs } 21.8\text{L}$ if Shivaa absorbs.
- ✓ **Record §194R reasoning.** It targets business recipients, not this consumer.
- ✓ **Reconcile monthly.** Challans, 26AS, winner KYC, FMV — kept 8 years.
- ✓ **Park the TDS.** $\approx \text{Rs } 4.7\text{L}$ in a segregated escrow from day one.

✗ DON'T MUST

- ✗ **No release before TDS.** Deposit + PAN verification precede delivery.
- ✗ **No “flat 30%” shortcut.** Effective rate $\approx 31.2\%$ — under-deduction is your liability.
- ✗ **No wrong TDS section.** §194A / §194R misfiling invites demands.
- ✗ **No undervalued FMV.** Below-invoice valuation = concealment + penalties.
- ✗ **No missed deadlines.** Late deposit: interest under §201 + penalties.
- ✗ **No silent gross-up.** Needs board approval and CA accounting.
- ✗ **No PAN-less delivery.** Higher TDS risk and a broken audit trail.
- ✗ **No guessing surcharge.** Depends on the winner's income — use the CA working.
- ✗ **No fund mixing.** Prize, TDS, marketing, inventory are separate ledgers.
- ✗ **No deleting tax records.** 8-year statutory floor.

GST, invoicing & ITC on the gifted biscuit

Gold / silver jewellery: 3% GST (HSN 7113), metal + making invoiced together. E-invoicing applies at the threshold; GSTR-2A reconciliation protects credit. The gifted biscuit's ITC is blocked under §17(5)(h).

FIRM: no sale pre-GSTIN · §17(5)(h) reversal applied in writing · 2A reconciled monthly · e-way bill on the prize.

✓ DO MUST

- ✓ **GSTIN live first.** No taxable sale before registration is live (gate G3 hard).
- ✓ **Correct HSN / rate.** 7113 gold 3%; silver 3%; coin exemptions verified.
- ✓ **E-invoice / e-way bill.** Thresholds staffed; prize and bulk moves covered.
- ✓ **2A reconciliation monthly.** Credit only on matched purchase invoices.
- ✓ **§17(5)(h) reversal in writing.** Applied from the first return after purchase.
- ✓ **Vendor GSTIN validation.** Checked on the portal before the first PO.
- ✓ **Output tax deposited.** 3% collected, filed; GSTR-1 vs portal reconciled.
- ✓ **Place of supply coded.** IGST vs CGST/SGST correct on every invoice.
- ✓ **Prize documentation.** Biscuit invoiced to Shivaa's GSTIN; certificate matches.
- ✓ **Returns through peaks.** GSTR-1 / 3B calendar staffed for Dhanteras and the finale.

✗ DON'T MUST

- ✗ **No pre-GSTIN sales.** An offence with penalty + demand.
- ✗ **No ITC on the gift.** Without reversal: recoverable demand + interest.
- ✗ **No unreconciled 2A credit.** The most common jewellery-audit demand.
- ✗ **No fake-invoice chains.** Circular credit is what GST officers prosecute.
- ✗ **No invoice errors.** HSN, rate or value mistakes create dual exposure.
- ✗ **No early revenue booking.** Recognise on dispatch / delivery; prepayments are advances.
- ✗ **No unreported cash.** CTR / SFT at $\geq$ Rs 10L — no de-minimis for dealers.
- ✗ **No undocumented loan.** §73-compliant documentation or equity.
- ✗ **No single-person custody.** Two-person authorisation for prize and stock.
- ✗ **No deleting purchase records.** Tax, consumer and legal retention overlap at 8 years.

AML, cash rules & documented money

PMLA 2002 (FIU-IND reporting), Income-tax §269SS / §269ST (no cash $\geq$ Rs 20,000 per transaction; $\geq$ Rs 2L per day) and Companies Act §73 (deposits) frame the finance side. Jewellery is a classic AML sector — cash and KYC are first-line controls.

FIRM: cash $\leq$ legal limits · every maker KYC-filed · investor money documented day one · FIU reports on time.

✓ DO MUST

- ✓ **CTR / STR on time.** Cash $\geq$ Rs 10L reported; suspicion always flagged.
- ✓ **Cash ceilings enforced.** Digital rails by default; §269SS/ST limits never bent.
- ✓ **Vendor KYC file.** Identity, GSTIN, bank, ownership — refreshed annually.
- ✓ **Customer AML screens.** Flag repeated high-value / same-address orders.
- ✓ **Investor money documented.** Equity or a §73-compliant secured loan, papered day one.
- ✓ **Prize / TDS escrow.** Segregated and investor-visible — untouchable by ops.
- ✓ **Winner KYC.** PAN + identity verified before release.
- ✓ **Consignment / bullion lines.** Agreements state ownership, insurance, price risk.
- ✓ **Clean books.** CA-reviewed from day one — one source of truth.
- ✓ **Suspicious-order log.** Flag, review, act — dated evidence of the control.

✗ DON'T MUST

- ✗ **No cash workarounds.** Splitting invoices to dodge limits is itself the offence.
- ✗ **No unreported CTR.** A missed $\geq$ Rs 10L cash report is a PMLA failure.
- ✗ **No KYC-free vendors.** “Good rates” never beat a verified GSTIN + bank trail.
- ✗ **No spending prepayments.** Customer money is a liability until dispatch.
- ✗ **No informal investor money.** §73 deposit risk + destroyed investor comfort.
- ✗ **No single signer.** High-value payments need two authorised signatories.
- ✗ **No mixed ledgers.** Breaks CTR/STR review and the MIS.
- ✗ **No shell intermediaries.** Undocumented third-party payments are red flags.
- ✗ **No ignored FIU notices.** Reply on time with the log — silence escalates.
- ✗ **No premature purges.** Keep to the longest statutory retention.

Hallmark, HUID, purity & Legal Metrology

Gold-jewellery hallmarking (BIS + HUID) is mandatory in notified zones; silver to IS 2112:2025 is our standard. Legal Metrology governs weight / purity / price labels. The prize biscuit needs a certified-refiner chain of custody.

FIRM: every gold piece hallmarked with a verifiable HUID · silver to IS 2112 · prize certificate matches serial · weights on every invoice.

✓ DO MUST

- ✓ **Hallmark every gold SKU.** BIS + purity + verifiable HUID through BIS Care.
- ✓ **Silver marked to standard.** 925 / 999 on piece, invoice and pack.
- ✓ **Prize from a certified refiner.** Certificate + serial + invoice + insurance + custody log.
- ✓ **Metrology labels.** Net weight, purity, MRP incl. GST, seller, date.
- ✓ **Origin disclosed.** Per the draft e-commerce country-of-origin filter.
- ✓ **Purity language exact.** 916 $\neq$ 999; plated $\neq$ solid — label the truth.
- ✓ **Batch QC (XRF).** Sample-test maker lots; retain the register.
- ✓ **Weights verified.** Dispatch weight = invoice weight, logged.
- ✓ **Biscuit marketed as biscuit.** Certified coin product — not “hallmarked jewellery”.
- ✓ **Claims trace to files.** Every BIS / HUID claim maps to a certificate.

✗ DON'T MUST

- ✗ **No unhallmarked gold jewellery.** An offence in notified districts — zero exceptions.
- ✗ **No mis-stated karat.** 916 passed as 999 is fraud-level exposure.
- ✗ **No “BIS-verified” while disconnected.** Say “user-verifiable on BIS Care”.
- ✗ **No unverified purity claims.** 925 vs 999 disclosed on silver.
- ✗ **No loose certificates.** Serial must match invoice and piece.
- ✗ **No weightless invoices.** Every invoice carries weights.
- ✗ **No undeclared stone weight.** Gross / net / stone weight on studded items.
- ✗ **No unlicensed BIS logo.** Separately penalised under the BIS Act 2016.
- ✗ **No mixed-karat bins.** Segregate and label stock by purity.
- ✗ **No skipped metrology labels.** Each missing label = one small defect.

DPDP 2023, the AI concierge & cyber readiness

The DPDP Act 2023 (Rules Nov 2025; enforcement ≈ May 2027) governs quiz / purchase / PAN data — penalties to Rs 250 Cr per instance. The Gemini concierge is disclosed; CERT-In reporting applies to intermediaries.

FIRM: granular consent recorded · ledger encrypted and access-controlled · AI disclosed, excluded from the draw · deletion on schedule.

✓ DO MUST

- ✓ **Notice + granular consent.** Plain language at quiz / purchase / PAN collection.
- ✓ **Purpose limitation.** Quiz→entry, purchase→fulfilment, PAN→TDS — nothing else.
- ✓ **Retention schedule.** Written, with deletion paths and statutory holds noted.
- ✓ **Responsive grievance contact.** Published DPO / grievance desk that answers.
- ✓ **Processor agreements.** Signed DPDP clauses with Gemini, analytics, cloud, payments.
- ✓ **AI labelled, human path.** Escalation exists; AI never enters winner selection.
- ✓ **Consent withdrawal.** Path documented, including effect on the frozen ledger.
- ✓ **No under-18 targeting.** Age screening where the promo could reach minors.
- ✓ **CERT-In readiness.** 72-hour reporting + DPDP breach notice.
- ✓ **Cyber hygiene.** MFA, encrypted backups, least privilege on the ledger.

✗ DON'T MUST

- ✗ **No purpose creep.** Selling or reusing entrant data without fresh consent.
- ✗ **No indefinite retention.** Schedule and delete — “just in case” fails DPDP.
- ✗ **No AI in the draw.** Deterministic, witnessed, recorded — never an opaque model.
- ✗ **No AI legal / tax answers.** The bot redirects to T&C; and advisors.
- ✗ **No pre-checked consent.** A dark pattern and invalid consent.
- ✗ **No blanket PAN asks.** Collect only from finalists / winner at the TDS stage.
- ✗ **No unencrypted exports.** The ledger never leaves controlled, encrypted access.
- ✗ **No orphaned access.** Revoke vendor and staff access on exit.
- ✗ **No silent breaches.** Delayed response is penalised harder than the breach.
- ✗ **No DPDP theatre.** Consent must be wired into the actual forms.

Oversight, segregation & the launch gate

Governance is the control board the investor can audit: board authority, separated duties, tested systems and a gated public launch. Independence of the draw from sales is the single most auditable control in the campaign.

FIRM: gates G1-G10 are binary — green only with the dated sign-off of the named owner. Nothing “goes live anyway”.

✓ DO MUST

- ✓ **Board resolution.** Offer, prize, Rs 9L marketing, Rs 1.5Cr deployment, custodian, draw authority.
- ✓ **Advisors before 12 Sep.** Lawyer + CA retained; written opinions before entries open.
- ✓ **Four-way duty split.** Draw, ledger, custody and finance in different hands.
- ✓ **Prize custody + insurance.** Lockable, two-person access log, insured to handover.
- ✓ **End-to-end dry run.** Purchase → quiz → free entry → simulated draw → tax.
- ✓ **Load / queue rehearsal.** Before Dhanteras, Diwali and the finale.
- ✓ **Vendor agreements signed.** First 20–30 makers: hallmark, IP, SLA, returns, indemnity.
- ✓ **Weekly check-ins.** Dated agenda: copy, grievances, free route, refund SLA.
- ✓ **Re-draw rule published.** Before entries open.
- ✓ **Monthly MIS + final report.** Orders, GMV, entries, CAC, complaints, cash — by 31 Jan 2027.

✗ DON'T MUST

- ✗ **No pre-opinion launch.** G1 / G2 are hard gates — the biggest avoidable failure.
- ✗ **No single point of failure.** One person never holds two of draw / ledger / custody / finance.
- ✗ **No December-spend leakage.** The finale reserve is never front-loaded.
- ✗ **No quiet free-route fade.** Equal odds stay live and promoted all campaign.
- ✗ **No unretested code.** A change near freeze requires a full re-test.
- ✗ **No mid-campaign rule changes.** Vested entries are never touched.
- ✗ **No casual prize handling.** PAN → TDS → ack → two-person handover.
- ✗ **No informal documents.** Investor, vendor and prize paperwork on day one.
- ✗ **No sign-off theatre.** Read, file and follow the written opinions.
- ✗ **No gate bypass.** A skipped gate is owned in writing.

Ten gates, ten hard walls, one clearance certificate

Gate	What is signed off (owner)	D
G1	Written legal opinion — contest structure + state exposure — Lawyer	☐
G2	Written CA note — TDS §128/§393(3), GST/ITC on prize, cash-flow — CA	☐
G3	GSTIN obtained and live on shivaa.in — Owner/CA	☐
G4	T&C;, official rules, DPDP privacy, grievance officer — Lawyer + Dev	☐
G5	100 g biscuit bought (certificate), insured, custodied — Owner/Ops	☐
G6	Free-entry + quiz + ledger + audited draw tested end-to-end — Dev	☐
G7	Ads/Live copy approved (“win a chance”, Meta release, no “100% free”) — Lawyer + Mktg	☐
G8	Vendor agreements with first 20-30 makers — Ops	☐
G9	Load test + queue passed; CS staffed (48h/30d SLA) — Ops	☐
G10	Draw witness, re-draw rule, 8-year retention confirmed — All	☐

1. No entries before G1+G2

2. No “100% free” anywhere

3. No ad before G7

4. No sale pre-GSTIN

5. No ITC on the gift
6. No winner release pre-TDS/PAN

7. No TN/WB targeting

8. No single-person custody

9. No records deletion (8y)

10. No mid-campaign rule change

Clearance certificate (internal): the campaign goes public on 12 Sep with G1–G4 + G7 green; entries open post-G5–G6, G8–G10 before the draw. Adverse event? Follow the SOP: pause → lawyer/CA call → fix → resume — kill-switch triggers are pre-agreed in the board resolution. Report by 31 Jan 2027.

One prize. One nation. One night.

A lawful, taxed, consumer-safe giveaway engine — announced 12 Sep, drawn live 31 Dec 2026.

Ernate Shine Jewellery Pvt. Ltd. · shivaa.in · CIN U32111RJ2025PTC099173
Investment proposal: Rs 1.5 crore · Thank you.

Planning research — not legal, tax or investment advice. Confirm with your lawyer, CA and advisors before commitment.

Confidential — for the addressee only. © 2026 Shivaa.in